

SENATE BILL 1033

By Bowling

AN ACT to amend Tennessee Code Annotated, Title 58,
Chapter 2 and Title 68, Chapter 201, relative to
weather modification.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 58-2-116(a), is amended by deleting the second sentence and substituting:

At the governor's direction, state agencies, including, those charged with responsibilities in connection with flood plain management; stream encroachment and flow regulation; weather modification, including the intentional injection, release, or dispersion, by any means, of chemicals, chemical compounds, substances, or apparatus within the borders of this state into the atmosphere with the express purpose of affecting temperature, weather, or the intensity of the sunlight; fire prevention and control; air quality; public works; land use and land use planning; and construction standards, shall make studies of emergency mitigation-related matters.

SECTION 2. Tennessee Code Annotated, Section 68-201-122, is amended by deleting the section and substituting:

(a) It is an offense to:

(1) Intentionally inject, release, or disperse, by any means, chemicals, chemical compounds, substances, or apparatus within the borders of this state into the atmosphere with the express purpose of affecting temperature, weather, or the intensity of the sunlight; or

(2) Supply or otherwise provide a person with the chemicals, chemical compounds, substances, or apparatus required for the conduct described in

subdivision (a)(1) if the supplier or provider knows or has reason to believe that the chemicals, chemical compounds, substances, or apparatus will be used for such conduct.

(b) The attorney general and reporter and local district attorneys may investigate a report of:

(1) A violation of subsection (a) if the report is deemed credible by a state agency charged with responsibilities as described in § 58-2-116(a); or

(2) The occurrence of a harmful consequence of an emergency, as described in § 58-2-116, if the attorney general and reporter or local district attorney reasonably believes that weather modification has or might have taken place.

(c)

(1) Notwithstanding § 68-201-112, a violation of subsection (a) is a Class A misdemeanor.

(2) In addition to the penalty described in subdivision (c)(1), if the department determines that a person violated subsection (a), then the department shall assess a fine of one hundred thousand dollars (\$100,000) per violation. For purposes of determining the applicable penalty under this subdivision (c)(2), each instance of injecting, releasing, or dispersing chemicals, chemical compounds, substances, or apparatus for the purposes described in subdivision (a)(1), and each instance of supplying or otherwise providing the chemicals, chemical compounds, substances, or apparatus in violation of subdivision (a)(2), is a separate violation.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it, and applies to conduct occurring on or after that date.